

Smt Rajkali Yadav v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 2 February 2023 · Writ-C No. 40133 of 2022 · **Writ disposed; Executive Engineer directed to redress the pending new-connection application in accordance with the Supply Code, 2005 within three weeks, without opinion on merits.**

HEADNOTE

A pending online application for a fresh electricity connection under Chapter 4.3 and 4.4 of the U.P. Electricity Supply Code, 2005 is to be addressed by the competent authority under that self-contained Code. The High Court will not mandamus a connection on merits and will dispose of the writ with a time-bound direction to the Executive Engineer to look into the grievance and redress it in accordance with law.

FACTUAL SUMMARY

The petitioner, residing at Ganesh Nagar, Muirabad, Prayagraj, applied online for a fresh electricity connection. A mother-daughter dispute was pending in Original Suit No. 249 of 2020 for cancellation of a Will deed and registered agreement; her 6-C application was allowed, restraining the private respondents from disturbing her possession or creating third-party interest. On that footing she applied under Chapter 4.3 and 4.4 of the U.P. Electricity Supply Code, 2005. The application remaining pending, she sought mandamus for a time-bound new connection and a restraint against the private respondents.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

pending new-connection application — consider in accordance with Code

HOLDING

Without expressing any opinion on merits, and with the consent of parties, the Court disposed of the writ by directing the Executive Engineer, U.P. Power Distribution Division, Prayagraj, to look into the petitioner's pending application for a fresh connection under Chapter 4.3 and 4.4 of the U.P. Electricity Supply Code, 2005 — treated by the licensee as a self-contained code — and redress the grievance in accordance with law within three weeks of production of a certified copy of the order. ¶ 1

PRINCIPLE TAGS

pending-new-connection-consider-in-accordance-with-code

The Court accepted that the Supply Code, 2005 is a self-contained code and, without deciding whether a new connection was due amid a mother-daughter title dispute, directed the Executive Engineer to consider the pending 4.3/4.4 application in accordance with law within a fixed time. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — ENTITLEMENT TO A FRESH ELECTRICITY CONNECTION UNDER CLAUSES 4.3 AND 4.4 OF THE SUPPLY CODE, 2005

The Court expressly declined to express any opinion on the merits. ¶ 1

NOT DECIDED — EFFECT OF THE PENDING CIVIL SUIT AND 6-C INJUNCTION ON THE CONNECTION APPLICATION

The mother-daughter title and possession dispute was recited but not adjudicated for supply purposes. ¶ 1

